

BILL OF DISCORD An All India Muslim Personal Law Board protest against the Waqf (Amendment) Bill in Delhi, March 17

PTI

MUSLIM PROPERTIES

WAR OVER WAQF

By Kaushik Deka

The passage of the Waqf (Amendment) Bill in Parliament this week signifies a watershed moment in the governance of religious endowments in India, fundamentally altering the administrative structure that has overseen Islamic charitable properties for decades. The legislation, now renamed the 'Unified Waqf Management, Empowerment, Efficiency and Development Act (UMEED), 1995,' has ignited fierce debate about religious autonomy and property rights. For supporters, the amendments promise transparency and accountability; for critics, they threaten nothing less than state appropriation of religious heritage.

The reforms target longstanding challenges in waqf administration. Waqf boards, established as statutory bodies under the Waqf Act, administer these properties at the state level. Each board includes government nominees, Muslim legislators, Bar Council members, Islamic scholars and property managers. The Central Waqf Council, established in 1964, provides national oversight (see *What's Waqf?*).

However, encroachments remain a concern, with messy documentation problems across the country. Several states, including Gujarat and Uttarakhand, have not even begun surveying waqf properties; others like Uttar Pradesh continue to struggle with